themselves on the ground of contract: and cannot support themselves upon the principle, that the law divests vested rights. It is well settled, by the decisions of this court, that a state law may be retrospective in its character, and may divest vested rights; and yet not violate the constitution of the United States, unless it also impairs the obligation of a contract. Satterlee *v.* Matthewson, 2 Pet. 413, cited.

The ferry-right which was owned by Harvard College, was extinguished by the building of the Charles river bridge; the ferry, with all its privileges, was then at an end for ever, and a compensation in money was given in lieu of it.

As the franchise of the ferry, and that of the bridge, are different in their nature, and were each established by separate grants, which have no words to connect the privileges of the one, with the privileges of the other; there is no rule of legal interpretation, which could authorize the court to associate these grants together, and to infer that any privilege was intended to be given to the bridge company, merely because it had been conferred on the other; the charter of the bridge is a written instrument, and must speak for itself, and be interpreted by its own terms.

The grant to the bridge company is of certain franchises, by the public, to a private corporation, in a matter where the public interest is concerned; there is nothing in the local situation of this country, or in the nature of our political institutions, which should lead this court to depart from the rules of construction of statutes, adopted under the system of jurisprudence which we have derived from the English law; no good reason can be assigned, for introducing a new and adverse rule of construction in favor of corporations, while we adopt and adhere to the rules of construction known to the English common law, in every other case, without exception.

Public grants are to be construed strictly. In the case of the United States *v.* Arredondo, 6 Pet. 736, the leading cases on this subject are collected together by the learned judge, who delivered the opinion of the court: and the principle recognised, that in grants by the public, nothing passes by implication. Jackson *v.* Lamphire, 3 Pet. 289; Beaty *v.* Knowler, 4 Ibid. 165; Providence Bank *v.* Billings, Ibid. 514, cited.

In the case of the Providence Bank *v.* Billings, 4 Pet. 514, Chief Justice Marshall, speaking of the taxing power, said, "as the whole community is interested in retaining it undiminished, that community has a right to insist, that *its abandonment ought not to be presumed in a case in which the deliberate purpose of the state to abandon it does not appear." *422]

The case now before the court, is, in principle, precisely the same; it is a charter from a state; the act of incorporation is silent in relation to the contested power; the argument in favor of the proprietors of the Charles river bridge is the same, almost, in words, with that used for the Providence Bank; that is, that the power claimed by the state, if it exists, must be so used as not to destroy the value of the franchise they have granted to the corporation; the argument must receive the same answer. And the fact, that the power has been already exercised so as to destroy the value of the franchise, cannot in any degree affect the principle; the existence of the power does not, and cannot depend upon the circumstance of its having been exercised or not.

The object and the end of all government is, to promote the happiness and prosperity of the community by which it is established; and it can never be assumed, that the government intended to diminish its power of accomplishing the end for which it was created; and in a country like ours, free, active and enterprising, continually advancing in numbers and wealth, new channels of communication are daily found necessary both for travel and trade; and are essential to the comfort, convenience and prosperity of the people. A state ought never to be presumed to surrender this power; because, like the taxing power, the whole community have an interest in preserving it undiminished; and when a corporation alleges, that a state has surrendered, for seventy years, its power of improvement and public accommodation, in a great and important line of travel, along which a vast number of its citizens must daily pass, the community have a right to insist, in the language of this court, "that its abandonment ought not to be presumed, in a case in which the deliberate purpose of the state to abandon it does not appear." The continued existence of a government would be of no great value, if, by implications and presumptions, it was disarmed of the powers necessary to accomplish the ends of its creation; and the functions it was designed to perform, transferred to the hands of privileged corporations. The rule of construction announced by the court, was not confined to the taxing power, nor is it so limited in the opinion delivered; on the contrary, it was distinctly placed on the ground, that the interests of the community were concerned in preserving undiminished, the power then in question; and whenever any power of the state is said to be